Disclaimer :

The Competition DG makes the information provided by the notifying parties in section 1.2 of Form CO available to the public in order to increase transparency. This information has been prepared by the notifying parties under their sole responsibility, and its content in no way prejudges the view the Commission may take of the planned operation. Nor can the Commission be held responsible for any incorrect or misleading information contained therein.

M.10702 - KPS CAPITAL PARTNERS / REAL ALLOY EUROPE

SECTION 1.2

Description of the concentration

On 31 August 2022, the European Commission received a notification of a proposed concentration pursuant to Article 4 of Council Regulation (EC) No 139/2004 by which KPS Capital Partners, LP ("**KPS**") registered in the United States, agreed to indirectly acquire through its portfolio company Speira Bidco I GmbH within the meaning of Article 3(1)(b) EUMR sole control over Evergreen Holding Germany GmbH, a limited liability company incorporated under the laws of the Federal Republic of Germany, and Real Alloy UK Holdco Ltd., a private limited company incorporated in England and Wales, both companies together also referred to as Real Alloy Europe.

KPS

KPS, through its affiliated management entities, is the manager of the KPS Special Situations Funds, a family of investment funds with approximately $13.4 billion of assets under management (as of March 31, 2021). For nearly three decades, the partners of KPS have worked to realize significant capital appreciation by making controlling equity investments in manufacturing and industrial companies, across a diverse array of industries, including basic materials, branded consumer, healthcare and luxury products, automotive parts, capital equipment and general manufacturing. The KPS investment strategy and portfolio companies are described in detail at www.kpsfund.com.

KPS has controlling equity investments in manufacturing and industrial companies across a diverse array of industries, including basic materials, branded consumer, healthcare and luxury products, automotive parts, capital equipment and general manufacturing.

Real Alloy Europe

Real Alloy Europe is a recycler of aluminium and magnesium scrap and related by-products, providing metal and conversion capacity for industries including automotive, construction, aerospace and packaging. Real Alloy Europe has seven facilities located in Germany (Grevenbroich, Töging and Deizisau), Norway (Eidsvåg and Raudsand), France (Les Islettes) and the United Kingdom (Swansea), and approximately 550 employees. Real Alloy Europe is headquartered in Grevenbroich, Germany. More information about Real Alloy Europe is available at www.realalloy.com/eu.